



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00365 | 4612 Van Buren (Hill Heights Addition, 2nd Filing) Annexation
Date: November 28, 2022

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 11/28/2022
- Public Services Committee 12/6/2022
- Second reading 12/12/2022
- Public Services Committee 12/20/2022
- Third and final reading 12/27/2022

Related Items:

- UDC-22-00365-02: Zoning Map Amendment
- UDC-22-00365-01: Preliminary Plat

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED WEST OF VAN BUREN AVENUE, NORTH OF DELL RANGE BOULEVARD.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That 1105 Ashford LLC, owners of the north 132' of the east 120' of the east 190' of the SE¼ of Tract 36, Hill Heights Addition, Laramie County, Wyoming have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof;
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 5910;
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne;
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished;
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned AR Agricultural Residential by the Laramie County Commissioners; and,
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to Wyo. Stat. § 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK
publish date: _____



LEGEND

- SET 3/4" X 24" LONG REBAR WITH 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- FOUND 1/2" ALUMINUM CAP STAMPED PLS 5910
- FOUND 1/2" ALUMINUM CAP STAMPED PLS 2500
- FOUND NAIL
- AREA TO BE ANNEXED
- CITY LIMITS

ANNEXATION DESCRIPTION

A PARCEL BEING A PORTION OF LOT 36, HILL HEIGHTS ADDITION: NORTH 132' OF EAST 120' OF THE EAST 190' OF THE SE1/4 TRACT 36 and the 80' RIGHT OF WAY FOR VAN BUREN AVENUE ADJACENT THERE TO.

APPROVALS

Approved by the City Council of the City of Cheyenne, Wyoming, this ____ day of ____ 2022.

Attest: _____ City Clerk

ANNEXATION AREA

TOTAL AREA: 0.50 ACRES
0.36 ACRES PARCEL
0.24 ACRES ADJACENT ROW
ABUTTING ANNEXATION AND RATIO TO TOTAL PERIMETER - 30%

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state that the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.



ANNEXATION EXHIBIT

FOR HILL HEIGHTS ADDITION: NORTH 132' OF EAST 120' OF THE EAST 190' OF THE SE1/4 TRACT 36 AND ADJACENT VAN BUREN AVENUE, LARAMIE COUNTY, WYOMING

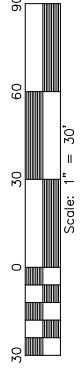
PREPARED AUGUST, 2022



STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1109 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7575
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-8759
www.SteelSurvey.com • info@SteelSurvey.com

HILL HEIGHTS ADDITION TRACT 36

BASIS OF BEARINGS:
WYOMING STATE PLANE COORDINATES,
EAST ZONE, NAD83-2011,
US SURVEY FEET, DISTANCES ARE GRID
DISTANCES.



DELL RANGE BOULEVARD (80' R/W)

REVISED: 9/13/2022
22276 TRACT 36 HILL HEIGHTS ANNEX.DWG



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

NOVEMBER 28, 2022

STAFF REPORT

FILE: UDC-22-00365: 4612 Van Buren - Annexation

REQUEST: An annexation of 0.4 acres of land

LOCATION: West of Van Buren Avenue, north of Dell Range Boulevard

APPLICANT/AGENT: Brandon Swain

OWNERS: 1105 Ashford LLC

PURPOSE: To allow cottage lot development

PREPARED BY: Seth Lloyd, Planner II – Development



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexing 0.4 acres of land to develop the property with cottage-lot style townhomes. The land is currently developed with one rural-residential style dwelling. A zone change and preliminary plat is proposed concurrently with this annexation. All applications are anticipated to come to final consideration before the Governing Body at the same meeting.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by a submission to change the zoning from County AR to City NR-3.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	County AR Agricultural Residential	Rural residential
North	Urban Residential	MR Medium-density Residential	Duplex and townhome residential
South	Urban Residential	County AR	Rural residential
East	Urban Residential	County AR	Rural residential
West	Urban Residential	County AR, MR	Rural residential, duplex residential

The property is currently zoned with an agricultural zone in the County. The property is concurrently proposed to be annexed and rezoned to the City zone of NR-3. The City NR-3 zone is intended for high-density residential development in a walkable format.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]

The annexation of this property will increase the health, safety, and welfare of the future occupants. By being in City limits, the property will receive access to City Fire and Police and sanitation services. The property, if occupied, will also be required to be connected to City water and sanitary sewer instead of having wells and septic systems.

The application **complies** with this review criterion.

- 2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]**

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The property is adjacent to the City to the north and is part of a County pocket. The contiguity to the City and the proximity to surrounding urban-style development makes the parcel a natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. Utilities exist in the area.

The application **complies** with this review criterion.

- 4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation is about 30% contiguous, along the northern edge.

The application **complies** with this review criterion.

- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was made to the landowners and public utilities on October 24, 2022. The public hearing for this annexation is scheduled for November 28, 2022. Twenty (20) business days (on the City's calendar) prior to the announced public hearing is October 26, 2022. The earliest confirmation of delivery was dated October 25, 2022.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Policies within PlanCheyenne encourage the annexation of County pockets. This is part of a County Pocket.

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with urban residential uses. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits. The area is within the Urban Service Boundary.

STAFF REVIEW:

Through the review process, no comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

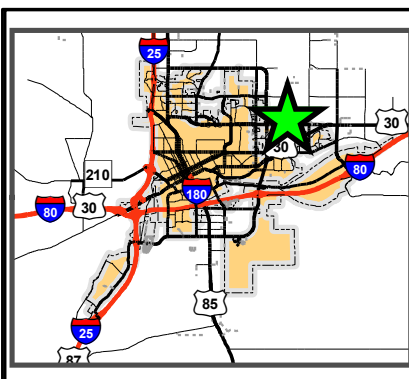
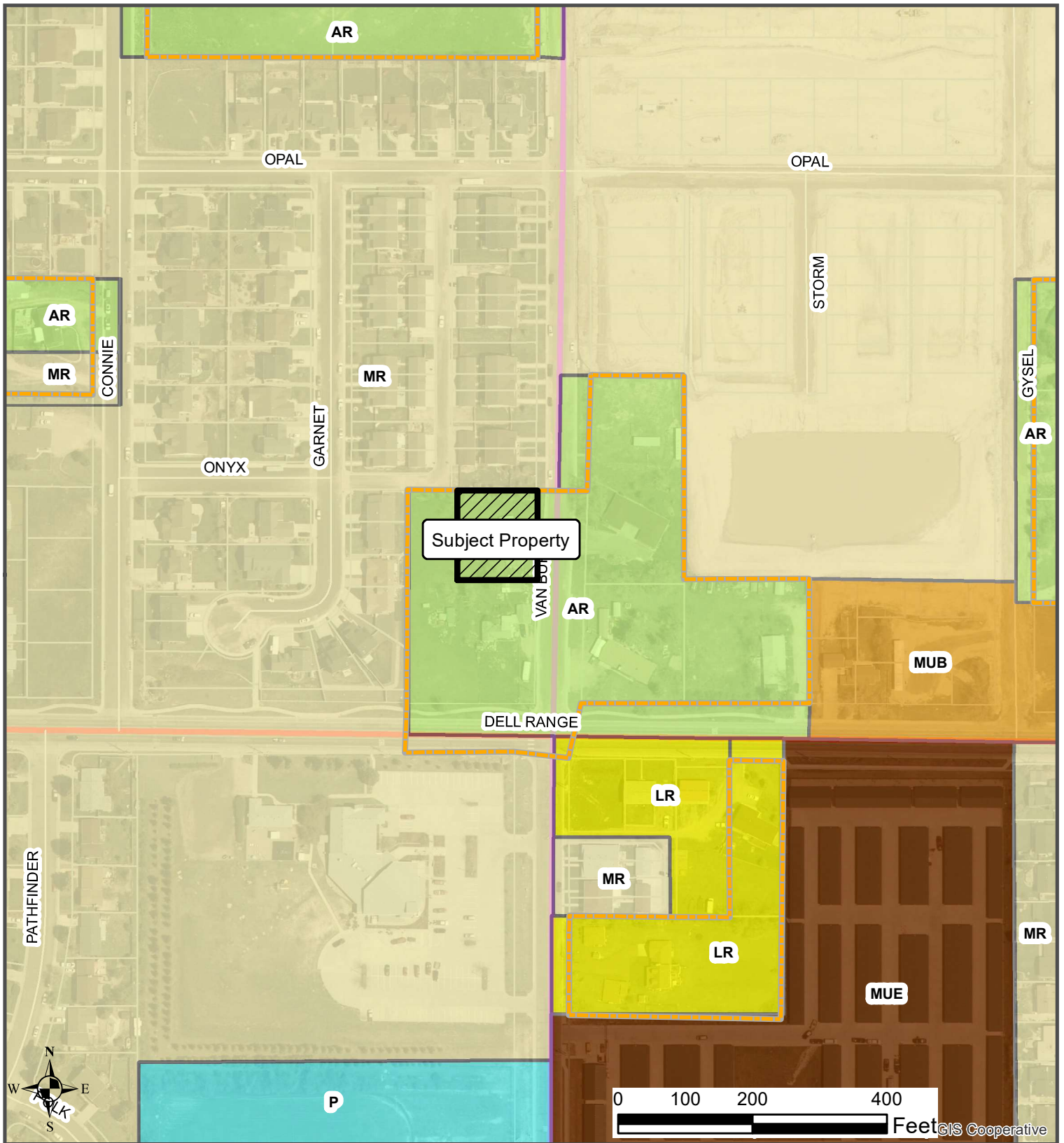
The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and most services typically available to urban areas are available to be extended to this property.

STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Submitted Application
4. Applicant-submitted annexation map

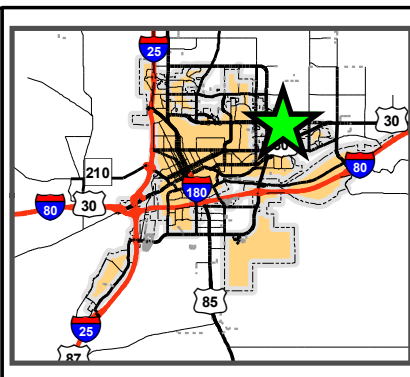
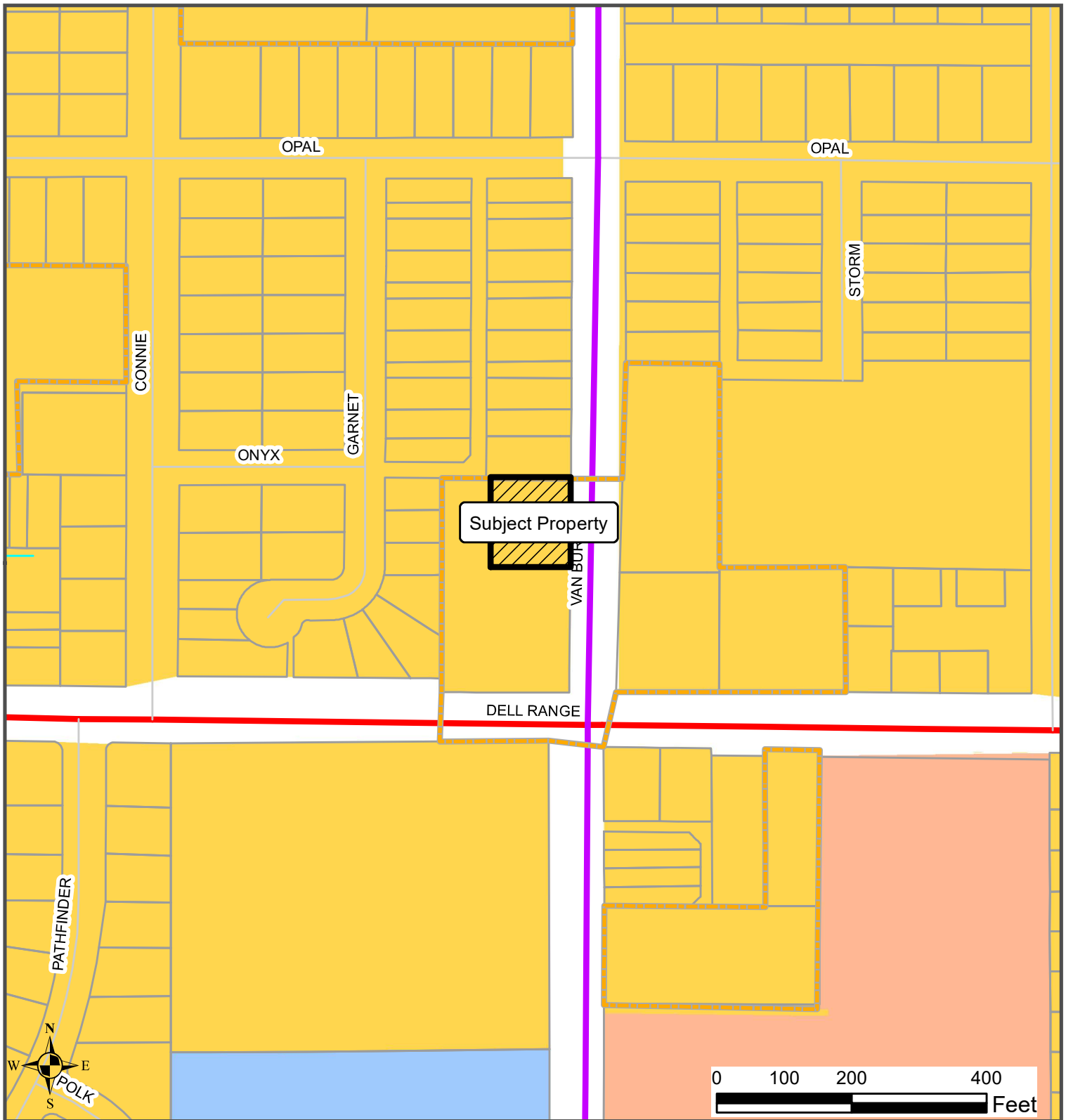


Attachment 1: Zoning Map UDC-22-00365

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- | | |
|--|--|
| <ul style="list-style-type: none"> Nov19_CityLimits Interstate Principal Arterial Minor Arterial Major Collector Minor Collector Local Private Platted not built HR / High Density Residential MR / Medium Density Residential LR / Low Density Residential NR-2 / Neighborhood Residential - Med. Density NR-3 / Neighborhood Residential - High Density AR / Agricultural Residential | <ul style="list-style-type: none"> A-1 / Agricultural and Rural Residential A-2 / Agricultural AG / City Agricultural MUR / Mixed Use Residential Emphasis CBD / Central Business District CB / Community Business NB / Neighborhood Business MU / Mixed Use - County MUB / Mixed Use Business Emphasis MUE / Mixed Use Employment Emphasis HI / Heavy Industrial LI / Light Industrial P / Public AD / Airport District PUD / Planned Unit Development X / Exempt |
|--|--|



Attachment 2: Land Use Map UDC-22-00365

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Platted not built		
Private		
Ownership		

Planning and Development: Annexation Application

Submission date: **28 September 2022, 9:09PM**
Receipt number: **20**
Related form version: **13**

General Information

Applicant Name:	Brandon Swain
Applicant Address:	2802 Deming Blvd
Applicant City:	Cheyenne
Applicant State:	WY
Applicant Zip Code:	82001
Applicant Phone:	307-214-9634
Applicant Email	Bswainy23@gmail.com
Representative Name:	Brandon Swain
Representative Address:	2802 Deming Blvd
Representative City	Cheyenne
Representative State:	WY
Representative Zip Code:	82001
Representative Phone:	307-214-9634
Representative Email:	Bswainy23@gmail.com
Owner Name:	1105 Ashford LLC
Owner Address:	2802 Deming Blvd
Owner City:	Cheyenne

Owner State:	WY
Owner Zip Code:	82001
Owner Phone:	307-214-9634
Owner Email:	Bswainy23@gmail.com
Who is the primary contact regarding this application?	Applicant
Letter of Authorization	loavb.pdf
Project Location (Street Address or General Location):	4612 Van Buren Ave
Assessor's Parcel ID number(s)	14662330200800
Total Project Area	15,682 sq ft
Current Zoning	AR
Proposed Zoning	NR-3 - Neighborhood Residential - High Density

Application-Specific Information

For platted lots, provide legal description. If unplatted, type "unplatted."	Hill Heights Addition: North 132' of East 120' of the East 190 of the SE 1/4 Tract 36
Formal Annexation Petition	annexationpetition.pdf
Board of Public Utilities Clearance Form	annexationbopuclearance.pdf
Annexation Map	22276 TRACT 36 HILL HEIGHTS ANNEX PAPER (1).pdf
Final stamped and signed mylars are required prior to scheduling for Governing Body introduction.	

Signature / Certification

Applicant Signature

Name of signatory: Brandon Swain

A handwritten signature in black ink, appearing to read 'Brandon Swain', with a stylized, looping flourish.

[Link to signature](#)

Please enter an email address for an email receipt.

Bswainy23@gmail.com



PETITION FOR ANNEXATION

TO: **THE HONORABLE MAYOR, PATRICK COLLINS,**

AND MEMBERS OF THE CITY COUNCIL OF THE CITY OF
CHEYENNE, WYOMING:

KNOW ALL THAT 1105 Ashford LLC,
Owner name(s)

The undersigned owners, hereby petition to annex to the City of Cheyenne,
Wyoming, the following described property:

Legal description of requested annexation (attach additional sheet if necessary):

Hill Heights Addition: North 132' of East 120' of the East 190' of the SE 1/4 Tract 36

The undersigned petitioners hereby respectfully request that said property and
adjacent streets be annexed to the City of Cheyenne, and be made a part
thereof.

By submitting the petition for annexation, the undersigned agree to abide with
all applicable provisions and City ordinances, rules, and regulations involving
annexation.



Planning and Development Department – ANNEXATION PETITION

Attach additional sheet if necessary.

Brandon Swain

Brandon Swain
President 1105 Ashford, LLC

09/28/2022

Signature	Printed Name	Date
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Signature	Printed Name	Date
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Signature	Printed Name	Date
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Signature	Printed Name	Date
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Signature	Printed Name	Date
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Note: According to Wyoming State Statute § 15-1-403(b), no signature is valid if it is dated more than 180 days prior to the date of filing. No person signing a petition for annexation may withdraw his/her signature from the petition after it has been filed with the City Clerk.

Attest:

Planning and Development Department
2101 O'Neil Avenue, Suite 202, Cheyenne, WY
82001 (Phone) 307-637-6282 • (Fax) 307-637-6366



LEGEND

- SET $\frac{3}{8}$ " X 24" LONG REBAR WITH $\frac{1}{2}$ " ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- FOUND $\frac{1}{2}$ " ALUMINUM CAP STAMPED PLS 5910
- FOUND $\frac{1}{2}$ " ALUMINUM CAP STAMPED PLS 2500
- FOUND NAIL
- AREA TO BE ANNEXED
- CITY LIMITS

ANNEXATION DESCRIPTION

A PARCEL BEING A PORTION OF LOT 36, HILL HEIGHTS ADDITION: NORTH 132' OF EAST 120' OF THE EAST 190' OF THE SE1/4 TRACT 36 AND THE 80' RIGHT OF WAY FOR VAN BUREN AVENUE ADJACENT THERE TO.

APPROVALS

Approved by the City Council of the City of Cheyenne, Wyoming, this ____ day of ____ 2022.

Attest: _____ City Clerk

ANNEXATION AREA

TOTAL AREA: 0.50 ACRES
0.36 ACRES PARCEL
0.24 ACRES ADJACENT ROW
ABUTTING ANNEXATION AND RATIO TO TOTAL PERIMETER - 30%

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state that the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.



ANNEXATION EXHIBIT

FOR HILL HEIGHTS ADDITION: NORTH 132' OF EAST 120' OF THE EAST 190' OF THE SE1/4 TRACT 36 AND ADJACENT VAN BUREN AVENUE, LARAMIE COUNTY, WYOMING

PREPARED AUGUST, 2022



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REvised: 9/13/2022
22276 TRACT 36 HILL HEIGHTS ANNEX.DWG

